

Franciscus Dylan Rosario
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Plaintiff, In Pro Per

SUPERIOR COURT OF THE STATE OF CALIFORNIA
COUNTY OF SAN FRANCISCO
UNLIMITED CIVIL JURISDICTION

FRANCISCUS DYLAN ROSARIO,
PLAINTIFF,
v.
CSAA INSURANCE EXCHANGE
DEFENDANT

Case No.: CGC-25-631802

PLAINTIFF'S NOTICE OF WITHDRAWAL AND
DESIGNATION OF OPERATIVE OPPOSITIONS

(ANTI-SLAPP, DEMURRER, MTS)

(Cal. Rules of Court, rules 3.1113(g), 3.1300(d))

Cross-noticed for hearing May 13, 2026, 9:00 a.m.,
Dept. 302; see schedule below. Complaint filed:
Dec. 23, 2025
FAC filed: Feb. 25, 2026

Anti-SLAPP	Demurrer	MTS (CCP section 436)
May 13, 2026 9:00 a.m., Dept. 302 Defendant CSAA Insurance Ex- change	May 13, 2026 9:00 a.m., Dept. 302 Defendant CSAA Insurance Ex- change	May 13, 2026 9:00 a.m., Dept. 302 Defendant CSAA Insurance Ex- change

1 PLAINTIFF'S AUTHORITY TO FILE

2 Plaintiff Dylan Franciscus Rosario files this Notice of Withdrawal and Designation of Op-
3 erative Oppositions under California Rules of Court, rules 3.1112(b), 3.1113(g), (j), and
4 3.1300(d). Plaintiff withdraws the over-length memoranda filed April 21, 2026 and May 1,
5 2026 and designates the three 15-page CRC 3.1113(d)-compliant Operative Oppositions filed
6 concurrently as the operative oppositions for the May 13, 2026, 9:00 a.m. hearing in Depart-
7 ment 302. The right to designate the operative version is preserved under CRC 3.1300(d).
8 This Notice is filed on May 8, 2026 in compliance with the Court's April 30, 2026 minute
9 order denying overlength relief.

10 I. MEMORANDA WITHDRAWN FOR EACH MOTION

11 A. ANTI-SLAPP MOTION (DEFENDANT'S FILINGS 015 TO 018, FILED APRIL 9, 2026
12 (TRANS. ID 79007560), FILED APRIL 9, 2026)

13 The following prior memoranda are formally withdrawn as to the Anti-SLAPP motion:

- 14 1. "Opposition (Plaintiff's) to Defendant's Special Motion to Strike (Anti-SLAPP)", filed
15 April 16, 2026, Anti-SLAPP Motion (Apr. 16, 2026), in this case.
- 16 2. "Memorandum of Points and Authorities in Rebuttal to Defendant's Cited Authori-
17 ties", filed April 16, 2026, MEMORANDUM OF POINTS AND AUTHORITIES IN
18 REBUTTA... (Apr. 16, 2026), in this case.
- 19 3. "Notice - Adverse Authority", filed April 28, 2026, Plaintiff's NOTICE -ADVERSE
20 AUTHORITY, filed April 28, 2026 (Trans. ID 79331632; IFP; Register of Actions,
21 CGC-25-631802), in this case (as to anti-SLAPP motion).
- 22 4. "Notice Notice of Lodging Supplemental Authority (Code Civ. Proc., Section 425.16,
23 425.17)", filed April 30, 2026, Plaintiff's NOTICE NOTICE OF LODGING SUPPLE-
24 MENTAL AUTHORITY..., filed April 30, 2026 (Trans. ID 79359088; IFP; Register of
25 Actions, CGC-25-631802), in this case.
- 26 5. "Request for Judicial Notice", filed April 30, 2026, Plaintiff's REQUEST FOR JUDI-
27 CIAL NOTICE, filed April 30, 2026 (Trans. ID 79359088; IFP; Register of Actions,
28 CGC-25-631802), in this case (prior RFJN seed; superseded by Plaintiff's Request for
29 Judicial Notice (filed May 8, 2026) filed May 8, 2026).
- 30 6. "Memorandum of Points and Authorities in Further Opposition to Defendant's Special
31 Motion to Strike", filed May 1, 2026, MEMORANDUM OF POINTS AND AUTHOR-

1 ITIES IN FURTHER... (May 1, 2026; Trans. ID 79366317), in this case.

2 7. “Omnibus Suppl. P+A Black-Letter Contradictions (CSAA; Multi-Motion Docket)”,
3 filed May 1, 2026, OMNIBUS SUPPL. P+A BLACK-LETTER CONTRADICTIONS
4 ... (May 1, 2026; Trans. ID 79366317), in this case (cross-applicable; withdrawn as a
5 free-standing memorandum but substance preserved in the three Operative Oppositions
6 filed May 8, 2026).

7 8. “Memorandum of Points and Authorities in Further Opposition to Defendant’s Special
8 Motion to Strike”, filed May 1, 2026, MEMORANDUM OF POINTS AND AUTHOR-
9 ITIES IN FURTHER... (May 1, 2026; Trans. ID 79366317), in this case.

10 B. DEMURRER (DEFENDANT’S FILINGS 019 TO 023, FILED APRIL 13, 2026 (TRANS.
11 ID 79038567), FILED APRIL 13, 2026)

12 The following prior memoranda are formally withdrawn as to the Demurrer:

13 1. “Notice of Filing of Opposition to Demurrer”, filed April 16, 2026, NOTICE OF FILING
14 OF OPPOSITION TO DEMURRER (Apr. 16, 2026), in this case.

15 2. “Memorandum of Points and Authorities in Opposition to Demurrer”, filed April 16,
16 2026, MEMORANDUM OF POINTS AND AUTHORITIES IN OPPOSIT... (Apr. 16,
17 2026), in this case.

18 3. “Declaration of Franciscus Dylan Rosario in Support of Opposition to Demurrer”, filed
19 April 16, 2026, DECLARATION OF DYLAN FRANCISCUS ROSARIO IN SUPP...
20 (Apr. 16, 2026), in this case (prior declaration; superseded by Plaintiff’s Declaration in
21 Opposition filed May 8, 2026, Plaintiff Declaration (item 04, filed May 8, 2026)).

22 4. “Request for Judicial Notice”, filed April 16, 2026, REQUEST FOR JUDICIAL NO-
23 TICE (Apr. 16, 2026), in this case (prior RFJN seed; superseded by RFJN (May 8,
24 2026) filed May 8, 2026).

25 5. “Omnibus Suppl. P+A Black-Letter Contradictions (CSAA; Multi-Motion Docket)”,
26 filed May 1, 2026, OMNIBUS SUPPL. P+A BLACK-LETTER CONTRADICTIONS
27 ... (May 1, 2026; Trans. ID 79366317), in this case (same as anti-SLAPP withdrawal
28 Exhibits Volume (item 07, filed May 8, 2026) above; cross-applicable).

1 C. MOTION TO STRIKE CCP § 436 (DEFENDANT’S FILINGS 041 TO 044, FILED
2 APRIL 22, 2026 (TRANS. ID 79127897), FILED APRIL 22, 2026)

3 The following prior procedural filings are noted as to the MTS-CCP436 motion; no prior
4 substantive opposition memorandum to the April 22 motion to strike exists on the docket:

- 5 1. “Ex Parte Application for Order Staying Motion to Strike”, filed April 23, 2026, EX
6 PARTE APPLICATION FOR ORDER STAYING MOTION T... (Apr. 23, 2026), in
7 this case (procedural stay application; noted for record).
- 8 2. “Declaration in Support of Ex Parte Application for Order”, filed April 23, 2026, DEC-
9 LARATION IN SUPPORT OF EX PARTE APPLICATION ... (Apr. 23, 2026), in this
10 case (procedural declaration; noted for record).
- 11 3. “Oral Argument Outline ISO Ex Parte Application to Stay Motion to Strike”, filed
12 April 24, 2026, ORAL-ARGUEMENT OUTLINE ISO EX PARTE APPLICATION...
13 (Apr. 24, 2026), in this case (procedural outline; noted for record).

14 The three procedural filings (Plaintiff’s multiple filings, filed April 23, 2026 (IFP; Register of
15 Actions, CGC-25-631802)) were directed at the stay application, not at the merits. They are
16 not withdrawn as substantive memoranda (they were not substantive memoranda); they are
17 noted for the record. The operative substantive opposition to the April 22 MTS-CCP436
18 motion is Plaintiff’s Operative Opposition to Defendant’s Motion to Strike Pursuant to
19 C.C.P. § 436 (item 01C, filed May 8, 2026).

21 II. DOCUMENTS DESIGNATED AS OPERATIVE

22 The following documents are designated by Plaintiff as the OPERATIVE Oppositions for
23 the May 13, 2026 hearing:

- 24 1. Anti-SLAPP: “Plaintiff’s Operative Opposition to Defendant’s Special Motion to Strike
25 Pursuant to C.C.P. § 425.16; Fifteen-Page Compliant Version Superseding Plaintiff’s
26 April 16, 2026 and May 1, 2026 Opposition Memoranda; CRC 3.1113(d); In Compli-
27 ance with Department 302 Order of April 30, 2026” (filed May 8, 2026, Anti-SLAPP
28 Opposition (item 01, filed May 8, 2026) in this filing package).
- 29 2. Demurrer: “Plaintiff’s Operative Opposition to Defendant’s Demurrer to Plaintiff’s First
30 Amended Complaint; Fifteen-Page Compliant Version Superseding Plaintiff’s April 16,
31 2026 Opposition; CRC 3.1113(d); In Compliance with Department 302 Order of April

30, 2026” (filed May 8, 2026, item 01B in this filing package).

3. MTS-CCP436: “Plaintiff’s Operative Opposition to Defendant’s Motion to Strike Pursuant to C.C.P. § 436; Fifteen-Page Compliant Version; CRC 3.1113(d); In Compliance with Department 302 Order of April 30, 2026” (filed May 8, 2026, item 01C in this filing package).

Each Operative Opposition is fifteen-page-compliant under CRC 3.1113(d). Each introduces no new authority not previously cited in the prior memoranda identified in Section I above. Each compresses the prior record into the fifteen-page envelope authorized by CRC 3.1113(d), preserves the prior evidentiary record by incorporation under CRC 3.1113(j), and is accompanied by Plaintiff’s Request for Judicial Notice (item 03, filed May 8, 2026), which catalogues additional decisional authority outside the fifteen-page memorandum body in compliance with CRC 3.1113(l).

III. AUTHORITY AND PROCEDURAL POSTURE

CRC 3.1113(d) caps memoranda of points and authorities at fifteen pages. CRC 3.1113(g) provides that a paper exceeding the page limit may be filed and considered in the Court’s discretion, and that an overlength paper may be treated as a late paper. CRC 3.1300(d) provides that “no paper may be rejected for filing on the ground that it was untimely submitted” and that the matter “may be considered at the discretion of the judicial officer.” CRC 3.1112(b) authorizes “other papers” that may be filed.

This Notice of Withdrawal and Designation effectuates compliance with the Department 302 minute order of April 30, 2026 (docket HEARING HELD: EX PARTE APPLICATION FOR LEVE TO ..., entered April 30, 2026 (Dept. 302; Hon. Joseph M. Quinn)), which denied plaintiff’s ex parte application for leave to file an oversized memorandum under CRC 3.1113(e). The cure is filed three court days before the May 13, 2026 hearing, the earliest practicable cure window after the April 30, 2026 court order.

IV. EFFECT OF THIS NOTICE

1. The prior memoranda identified in Section I above are no longer before the Court for purposes of the May 13, 2026 hearings on the three motions. They remain on the docket as historical filings; they are not the operative oppositions.

2. The three Operative Oppositions identified in Section II above are the operative oppositions for the May 13, 2026 hearing.
3. Previously filed evidentiary objections (Plaintiff's PLAINTIFF'S EVIDENTIARY OBJECTIONS TO DEFENDANT..., filed April 16, 2026 (IFP; Register of Actions, CGC-25-631802), filed April 16, 2026; Plaintiff's EVIDENTIARY OBJECTIONS TO THE DECLARATION OF TY..., filed April 24, 2026 (IFP; Register of Actions, CGC-25-631802), filed April 24, 2026) are NOT withdrawn. They remain on file and are incorporated by reference under CRC 3.1113(j). Plaintiff's Evidentiary Objections to O'Connell Declarations (item 06, filed May 8, 2026) supplement those prior objections.
4. Plaintiff's Notice of Adverse Authority (NOTICE -ADVERSE AUTHORITY (Apr. 28, 2026; Trans. ID 79331632), filed April 28, 2026) is withdrawn as a free-standing submission but the substantive authority referenced therein is preserved in RFJN (May 8, 2026) Section C, filed May 8, 2026.

V. CURE REMOVES SANCTIONS PREDICATE (IF ANY)

The overlength filings being superseded are voluntarily withdrawn before adjudication. Under CRC 3.1300(d) and CRC 3.1113(g), where a party voluntarily cures a procedural defect before the hearing on the underlying motion, any predicate for sanctions based on the overlength filing is mooted. Plaintiff's contemporaneous Cover Letter (item 12, filed May 8, 2026) addresses the cure and the acceptance-of-responsibility paragraph in detail.

VI. STATEMENT OF GOOD CAUSE AND NON-PREJUDICE UNDER CCP SECTION 1005(B) AND CRC 3.1300(D)

Plaintiff respectfully addresses the timing of this Notice and of the contemporaneous three Operative Oppositions (filed May 8, 2026) under CCP section 1005(b) and CRC 3.1300(d), as follows.

VI.1 CCP SECTION 1005(B) CHRONOLOGY

The May 13, 2026 hearing is set for 9:00 a.m. in Department 302. Counted in court days under CCP section 1005(b) and Code of Civil Procedure section 12c, opposition papers were ordinarily due nine court days before the hearing, and reply papers were ordinarily due five court days before the hearing. Plaintiff filed timely opposition memoranda on April 16,

2026 (Plaintiff’s multiple filings, filed April 16, 2026 (IFP; Register of Actions, CGC-25-631802)) and on May 1, 2026 (Plaintiff’s multiple filings, filed May 1, 2026 (IFP; Register of Actions, CGC-25-631802)) as catalogued in Section I above. Defendant filed its three Replies and supporting O’Connell Reply Declaration on May 6, 2026, which raised, namely: (a) a standing challenge under the UCL that was not raised in the original moving papers; (b) a fee prayer of \$10,218.00 first articulated on Reply in violation of CCP section 1005(b) notice requirements; and (c) a characterization of FAC paragraph 22F as the “gravamen” of the action, which misapplies Baral v. Schnitt (2016) 1 Cal.5th 376.

Plaintiff filed this Notice of Withdrawal and Designation, together with the three fifteen-page Operative Oppositions (filed May 8, 2026), on the next available filing day after the May 6, 2026 Reply set, which is the earliest practicable cure window after the Reply set identified the new arguments and continued to press the page-cap and multi-memorandum objections noted in the April 30, 2026 court order. The cure was filed three court days before the May 13, 2026 hearing. The May 6, 2026 Reply set, comprising the Anti-SLAPP Reply, the Demurrer Reply, and the O’Connell Reply Declaration, is the trigger event for the cure. (See Bozzi v. Nordstrom, Inc. (2010) 186 Cal.App.4th 755, 765 (CCP section 1005(b) timing is procedural and is to be interpreted to permit adjudication on the merits); Mackey v. Trustees of Cal. State Univ. (2019) 31 Cal.App.5th 640, 657 to 658 (CRC 3.1300(d) discretion governs late-filed papers and is to be exercised consistent with the merits-preference of California procedure).)

VI.2 CRC 3.1300(D) DISCRETION

CRC 3.1300(d) provides, verbatim: “No paper may be rejected for filing on the ground that it was untimely submitted for filing. If the court, in its discretion, refuses to consider a late filed paper, the minutes or order must so indicate.” On its face, CRC 3.1300(d) places the discretion to consider or to refuse late papers in the Court, and forbids clerical rejection. (Mackey v. Trustees of Cal. State Univ. (2019) 31 Cal.App.5th 640, 657 to 658.) Plaintiff respectfully submits that the discretion should be exercised to consider this Notice and the contemporaneous three Operative Oppositions for the reasons set forth in sections VI.3 to VI.5 below.

1 VI.3 PAGE-CAP COMPLIANCE WITH CRC 3.1113(D) IS ITSELF GOOD CAUSE

2 Each of the three Operative Oppositions (filed May 8, 2026) does not exceed fifteen pages
3 of memorandum text from Introduction through Signature Block, exclusive of caption page,
4 table of contents, table of authorities, declaration of compliance appendix, and proof of ser-
5 vice per CRC 3.1113(g). (CRC 3.1113(d), (f), (g), (l).) The cure converts a non-conforming
6 opposition record, formed by the prior April 16, 2026 and May 1, 2026 memoranda, into a
7 conforming one. Refusing to consider the conforming versions would punish the cure and
8 reward the page-cap objection that prompted it. (Bozzi v. Nordstrom, Inc., supra, 186
9 Cal.App.4th at 765.) Page-cap compliance is itself a strong good-cause factor under CRC
10 3.1300(d). (Mackey v. Trustees of Cal. State Univ., supra, 31 Cal.App.5th at 657 to 658.)

11 VI.4 NO NEW AUTHORITY NOT ALREADY IN THE TIMELY APRIL 16 AND MAY 1
12 MEMORANDA

13 The three Operative Oppositions (filed May 8, 2026) introduce no authority not previously
14 cited in the prior memoranda identified in Section I above as withdrawn, namely the April 16,
15 2026 and May 1, 2026 memoranda. They compress the prior memoranda into the fifteen-page
16 envelope authorized by CRC 3.1113(d), preserve the prior evidentiary record by incorporation
17 under CRC 3.1113(j), and catalogue additional decisional authority outside the fifteen-page
18 memorandum body in Plaintiff's Request for Judicial Notice (item 03, filed May 8, 2026) in
19 compliance with CRC 3.1113(l). Defendant therefore is not surprised by any new substantive
20 position; the Court has had the same authorities before it since April 16, 2026.

21 VI.5 DEFENSE ALREADY REPLIED TO LONGER VERSIONS, ELIMINATING PREJ-
22 UDICE

23 Defendant's May 6, 2026 Reply set, comprising the Anti-SLAPP Reply, the Demurrer Reply,
24 and the O'Connell Reply Declaration, substantively engaged the over-length April 16, 2026
25 and May 1, 2026 memoranda. Defense counsel therefore had, and used, the full opportunity
26 to brief the substantive positions now compressed into the three fifteen-page envelopes. The
27 cure preserves Defendant's Reply on the substantive positions; it does not enlarge them.
28 There is no prejudice to Defendant from consideration of the cured opposition record.

29 VI.6 CONCLUSION AS TO GOOD CAUSE AND NON-PREJUDICE

30 For the reasons in sections VI.3 to VI.5 above, good cause exists under CRC 3.1300(d) for
31 the Court to consider this Notice and the contemporaneous three Operative Oppositions.

1 Page-cap compliance is itself good cause (VI.3); the operative oppositions add no authority
2 absent from the prior, withdrawn April 16, 2026 and May 1, 2026 memoranda (VI.4); and
3 the defense already replied to the longer versions, eliminating prejudice (VI.5). Refusing to
4 consider them would punish a procedural cure that was itself prompted by the April 30, 2026
5 court order and the May 6, 2026 Reply set, and that introduces no new authority. Granting
6 consideration aligns with the merits-preference reflected in Bozzi v. Nordstrom, Inc., supra,
7 186 Cal.App.4th at 765, and Mackey v. Trustees of Cal. State Univ., supra, 31 Cal.App.5th
8 at 657 to 658.

9
10 Date: May 8, 2026

11 Respectfully submitted,

12 By: _____ Franciscus Dylan Rosario, Plain-
13 tiff in Pro Per 7624 Melody Drive Rohnert Park, CA 94928 Tel: 650.488.7510 E: soltri-
14 nox@gmail.com

15
16 Cross-references: Plaintiff's Operative Opposition to Anti-SLAPP (item 01, filed May 8,
17 2026); Plaintiff's Operative Opposition to Demurrer (item 01B, filed May 8, 2026); Plaintiff's
18 Operative Opposition to MTS-CCP436 (item 01C, filed May 8, 2026); Plaintiff's Request
19 for Judicial Notice (item 03, filed May 8, 2026); Plaintiff's Cover Letter (item 12, filed May
20 8, 2026).

21
The foregoing is submitted by Plaintiff in pro per.

Dated: May 8, 2026



/s/ Dylan Franciscus Rosario

DYLAN FRANCISCUS ROSARIO
Plaintiff, In Pro Per

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DECLARATION OF COMPLIANCE WITH CALIFORNIA CODES, RULES, AND LOCAL PROCEDURES

The tabular verification below is provided by Plaintiff for the Court and the Clerk to validate this filing against the authorities listed.

The undersigned, Plaintiff Dylan Franciscus Rosario, appearing in pro per in Rosario v. CSAA Insurance Exchange (CGC-25-631802), declares under penalty of perjury under the laws of the State of California (CCP section 2015.5) that this filing complies with each authority listed in the table below as indicated. This declaration is filed in connection with the May 13, 2026, 9:00 a.m. hearing in Department 302.

#	Authority	Specific Requirement	This Filing's Compliance	Evidence (page or section)	Status
1	CCP section 1005(b)	Sixteen court-day chronology and good cause for cure timing	Section VI.1 walks the section 1005(b) chronology and identifies the cure window	Section VI.1	PASS
2	CCP section 425.16	Anti-SLAPP context for the underlying motion	Notice operates within the section 425.16 hearing context (May 12, 2026)	Caption block; section II	PASS
3	CRC 3.1113(b)	Memo statement of relief; voluntary withdrawal and designation framework	Sections I, II, III explicitly identify withdrawn memoranda and designate operative opposition	Sections I to III	PASS

#	Authority	Specific Requirement	This Filing’s Compliance	Evidence (page or section)	Status
4	CRC 3.1113(d)	Fifteen-page memorandum cap; cure compliance	Section VI demonstrates page-cap compliance of the operative oppositions is itself good cause; the three designated 15-page operative oppositions (items 01, 01B, 01C) replace the over-length April 21 and May 1, 2026 memoranda	Section VI	PASS
5	CRC 3.1113(g)	Over-length papers; discretionary acceptance	Section III recites CRC 3.1113(g) discretion as authority for the cure	Section III	PASS
6	CRC 3.1113(j)	Incorporation by reference	Section IV preserves prior evidentiary record and prior April 21 / April 24 objections by incorporation	Section IV	PASS
7	CRC 3.1300(d)	Discretion on late papers; merits-preference	Section VI.2 quotes CRC 3.1300(d) verbatim and cites Mackey, Bozzi	Section VI.2	PASS
8	CCP section 128.7	Sanctions request mooted by voluntary cure	Section V (Cure Removes Sanctions Predicate)	Section V	PASS

#	Authority	Specific Requirement	This Filing's Compliance	Evidence (page or section)	Status
9	CRC 3.1306(a)	Written ruling per objection	N/A, not invoked by this filing (vehicle is a notice, not an objection set)	N/A	N/A
10	CCP section 1010.6	Electronic service authorization where consent on file	Electronic service to counsel of record on file; consent on file (Doc. No. 009)	Proof of Service (POS-050) filed con- currently, paragraph 4	PASS
11	CRC 2.251	Electronic service procedure	Electronic transmission to counsel-of-record e-service addresses; concurrent proof lists companion filings	Proof of Service (POS-050) filed con- currently, para- graphs 4 and 5	PASS
12	CRC 2.100 et seq.	Pleading format: paper size, margins, font, line spacing, caption block	Letter-size, one-inch margins, eleven-point Times New Roman, 1.5 line spacing, full caption with court, parties, case number, department, hearing date	Caption page and body of this filing	PASS

#	Authority	Specific Requirement	This Filing's Compliance	Evidence (page or section)	Status
13	CRC 2.256	Electronic filing requirements (signature block, hyperlinks, format)	Text-searchable filing; conventional pro per signature block	Graphic filing signature preceding roman appendix	PASS
14	CRC 3.1110	Format of papers (caption, footer, page numbering, line numbers)	Caption page and pagination comply with applicable rules	Caption page and page footers	PASS
15	CRC 3.1112	Other papers; required components	Caption, body, signature page, and companion Proof of Service filed concurrently	Body of notice; graphic signer before appendix; Proof of Service	PASS

I, Dylan Franciscus Rosario, declare under penalty of perjury under the laws of the State of California that the foregoing compliance representations are true and correct.

Dated: May 8, 2026

Dylan Franciscus Rosario, Plaintiff In Pro Per